# Whistleblower Policy

*Policy Summary & Knowledge Check*

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| **Authority** | Board of Directors |
| **Date Ratified** | April 28, 2025 |
| **Next Review Date** | April 2028 |
| **Previous Amendments** | N/A |
| **Delegate(s)** | Chief Operating Officer; Senior Manager, People and Development |

## Policy Summary

This policy requires directors, executives, and employees to observe high standards of personal and professional ethics, and outlines the responsibility of all paid USC employees, board members, and volunteers to report suspected fraud or other misconduct. It covers reporting responsibility, protection against retaliation, the requirement to act in good faith, confidentiality of reports, and how reported violations are handled.

## Key Takeaways

- All board members, officers, employees, and volunteers are responsible for reporting concerns about violations of the USC's approved policies, or suspected violations of law or regulations governing the USC's operations.
- It is contrary to USC values for anyone to retaliate against a board member, officer, employee, or volunteer who, in good faith, reports an ethics violation, suspected fraud, or suspected regulatory violation; an employee who retaliates is subject to discipline up to and including termination.
- Anyone filing a written complaint must be acting in good faith with reasonable grounds for believing the disclosed information indicates a violation; allegations that prove unsubstantiated and were made maliciously or knowingly false will be treated as a serious disciplinary offense.
- Violations or suspected violations may be submitted on a confidential basis, and reports will be kept confidential to the extent possible, consistent with conducting an adequate investigation, which may include disclosure to third-party legal counsel.
- Suspected violations of approved USC policy, fraud, or other misconduct should generally be reported to the Chief Operating Officer; allegations against the COO go to the Senior Manager, People and Development, and allegations against a member of the USC's Executive follow the Executive Officer Accountability and Discipline Policy.
- All reports will be promptly investigated with appropriate corrective action taken if warranted, in accordance with the Whistleblower Procedure.

## Knowledge Check

*4 situational questions to check understanding of this policy. An answer key follows on the next page.*

**Q1.** An employee wants to report suspected fraud but is worried about being identified. What does the policy say about confidentiality?

**A.** Violations or suspected violations may be submitted on a confidential basis, and will be kept confidential to the extent possible.

**B.** All complainants must be publicly named.

**C.** Confidentiality is only available to Board members.

**D.** Reports can never be made confidentially.

**Q2.** A manager learns that an employee reported a suspected policy violation in good faith and begins treating them unfairly as a result. What is the consequence for the manager?

**A.** No consequence, since managers have full discretion.

**B.** The manager is subject to discipline up to and including termination.

**C.** Only a verbal reminder is given, regardless of severity.

**D.** The original complaint is simply dismissed.

**Q3.** An employee wants to report a suspected violation involving general USC operations. Who should this typically be reported to?

**A.** External legal counsel only.

**B.** Directly to the Board of Directors in all cases.

**C.** The Chief Operating Officer.

**D.** The employee's own direct report only.

**Q4.** Someone knowingly files a completely baseless whistleblower complaint out of malice. How is this treated?

**A.** As protected activity, regardless of intent.

**B.** It cannot be addressed under this policy at all.

**C.** As a normal complaint requiring only a standard investigation.

**D.** As a serious disciplinary offense.

## Answer Key

**Q1: A —** Sections 5.1 and 5.2 state violations may be submitted confidentially and will be kept confidential to the extent possible, consistent with conducting an adequate investigation.

**Q2: B —** Section 3.2 states an employee who retaliates against someone who has reported a violation in good faith is subject to discipline up to and including termination.

**Q3: C —** Section 6.1 states suspected violations of approved USC policy, fraud, or other misconduct should be reported to the Chief Operating Officer.

**Q4: D —** Section 4.2 states allegations that prove unsubstantiated and were made maliciously or knowingly false will be viewed as a serious disciplinary offense.